FIELD GUIDE 02 · ARTS & CREATIVE PROFESSIONS

EB-1A

for Artists & Creators

PROOF OF BRILLIANCE

A premium guide for visual artists, filmmakers, musicians, designers, writers, bloggers, and digital creators

Published by AiVass LLC

PURPOSE. PROOF. PERMANENCE.

AIVASS FIELD GUIDE 02 · ARTS & CREATIVE PROFESSIONS

EB-1A

for Artists & Creators

Proof of Brilliance

For visual artists, filmmakers, musicians, designers, writers, bloggers, and digital creators building a **self-petitioned extraordinary ability case**.

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Edition 1.0 · Legal standards verified July 2026

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Before You Begin

Legal disclaimer — please read

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WHERE THIS GUIDE SITS

This is a **field guide**. The **AiVass EB-1A Master Guide** covers the full legal framework and all ten criteria in general terms; Chapter 2 here restates the essentials so this guide stands alone. Everything else is written for one problem: how a creative career — measured in reviews, shows, prizes, audiences, and influence rather than citations — becomes an evidentiary record an immigration officer can verify.

How to Use This Guide

- **Beginner — "Do I qualify, or am I just working?"** Chapters 1–3 and the self-assessment in Chapter 12.
- **Advanced — "How do I make a subjective record objective?"** Chapters 4–9. Venues, press, prizes, influence, commercial numbers, and the comparable-evidence bridge.
- **Expert / B2B — "How do we run arts cases at volume?"** Chapter 11. Intake, exhibit architecture, translation workflow, and the arts RFE register.

THE THREE BOXES

Straight from the source

Blue boxes carry the controlling authority — statute, regulation, or the USCIS Policy Manual.

Strategy note

Gold boxes carry AiVass strategy: how strong arts cases are positioned, and where weak ones collapse.

The bottom line

Navy boxes distill the chapter into the one thing to remember.

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CHAPTER

01

The Standard Jump

O-1B got you here. EB-1A is a different mountain.

Most artists meet EB-1A through the O-1B visa — the nonimmigrant category for people of **extraordinary ability in the arts**. The names sound identical. The standards are not.

THE STANDARD LADDER



A prior O-1B approval is “a relevant consideration … not determinative.”

Figure 1.1 — Two categories, two thresholds. The immigrant bar sits higher.

O-1B in the arts asks for **distinction** — “a high level of achievement … a degree of skill and recognition substantially above that ordinarily encountered.” EB-1A asks whether you are **“one of that small percentage who have risen to the very top of the field of endeavor,”** with **sustained national or international acclaim**. The Policy Manual addresses the overlap directly: a prior O-1 approval is “a relevant consideration … not determinative,” and where an officer denies an EB-1A to a former O-1 holder, the denial should briefly explain the different standard.

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The bottom line

An O-1B approval is a strong signal and a weak guarantee. Treat EB-1A as a new case with a higher burden — because that is exactly what it is.

What the category offers a creative career

- **Self-petition.** No gallery, studio, label, agency, or employer sponsors you. You file your own Form I-140.
- **No job offer, no PERM.** The Policy Manual confirms an EB-1A petition "does not need to be supported by a job offer." No labor-market test.
- **Freedom of practice.** For artists whose income is project-based, itinerant, and multi-client, this is the decisive advantage. A green card ends visa-linked dependence on any single engager.
- **First preference.** Current for most countries, with premium processing available.

Who this guide is for

- Visual artists, photographers, sculptors, and installation artists.
- Filmmakers, cinematographers, editors, animators, and VFX artists.
- Musicians, composers, conductors, producers, and recording artists.
- Designers — graphic, industrial, fashion, and interaction — whose work is presented as art or design practice.
- Writers, poets, essayists, journalists, bloggers, and digital creators (Chapter 8 is written for you).
- Choreographers, dancers, actors, directors, and other performing artists.

The problem this guide solves

Arts petitions fail for a reason that has nothing to do with talent. Creative achievement is expressed in language officers cannot weigh: **"acclaimed," "groundbreaking," "influential," "sold out."** Meanwhile the regulation demands things an officer can verify: catalogs, juries, circulation data, certified sales, curatorial selection, adoption of your technique by others. Your task, in this guide, is translation — from **the language of praise into the language of proof**.

Strategy note — the objectivity mandate

Every subjective claim in your petition must be anchored to an objective artifact: a jury with named members, a catalog with your name in it, a critic of documented stature, a certified sales figure, a curriculum that teaches your method. Adjectives persuade audiences. Artifacts persuade adjudicators.

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CHAPTER
02

The Standard in Plain English

Three prongs, one definition, two steps.

The three prongs

> **Straight from the source**
>
> **1.** Extraordinary ability in the arts, demonstrated by **sustained national or international acclaim**, with achievements recognized through extensive documentation.
>
> **2.** Intent to **continue working in your area of extraordinary ability** in the United States.
>
> **3.** Your entry will **substantially benefit the United States** in the future.
>
> *— INA § 203(b)(1)(A); USCIS Policy Manual, Vol. 6, Pt. F, Ch. 2*

The definition

> **Straight from the source**
>
> "A level of expertise indicating that the individual is **one of that small percentage who have risen to the very top of the field of endeavor**." — 8 C.F.R. § 204.5(h)(2)

Note the two words that save arts petitions: **"field of endeavor."** You are not competing against every artist alive. You are competing within a field you define in Chapter 4 — "documentary cinematography," "contemporary figurative painting," "long-form narrative photography." Define it well and the top few percent becomes a describable group of people. Define it as "art" and it becomes an argument you cannot win.

Two pathways in

- **Pathway A — one-time achievement.** A major, internationally recognized award. In the arts this is the Academy Award, the Pulitzer, a competitive Grammy, a Palme d'Or tier of prize. One document, requirement met — and there is no comparable-evidence substitute for it.

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- **Pathway B — three of ten criteria.** The road nearly every artist travels. Meet at least three — or evidence properly argued as comparable to them.

Then: the two-step test

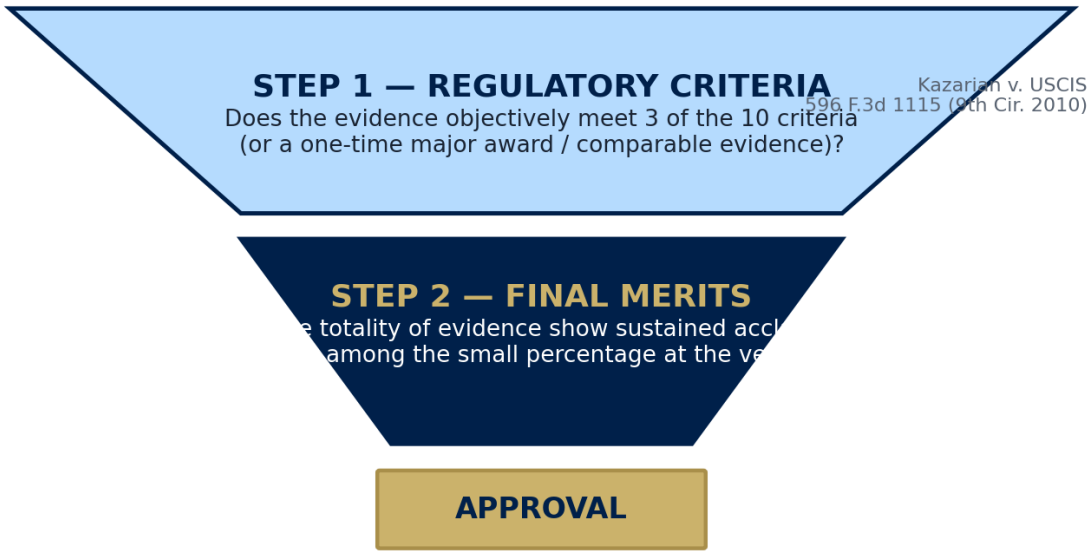


Figure 2.1 — The Kazarian two-step analysis.

Step 1 asks whether your documents objectively meet three criteria. Step 2 weighs **everything together** to decide whether you sit at the very top. A useful quirk lives in the Manual: display at an artistic exhibition **of any caliber** satisfies Step 1 — the venue's prestige is weighed at Step 2. The same is true for judging and authorship. Getting in the door is easier than winning the room.

Three rules that shape arts cases

- **Sustained means maintained.** A celebrated 2018 with a quiet 2023–2026 invites the officer to ask whether the acclaim persists. Build for the last 24 months.
- **Letters are not the cornerstone.** Curator and critic letters matter — but the Manual says witness statements "should not form the cornerstone" of the claim and must be corroborated by documents.
- **Volume is not persuasion.** A 400-page portfolio dump reads as insecurity. Curate as you would an exhibition.

The bottom line

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Three prongs. One definition. Two steps. Your work is to make a subjective practice legible to a stranger with a checklist.

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CHAPTER

03

The Arts Criteria Map

Where creative cases are actually built.

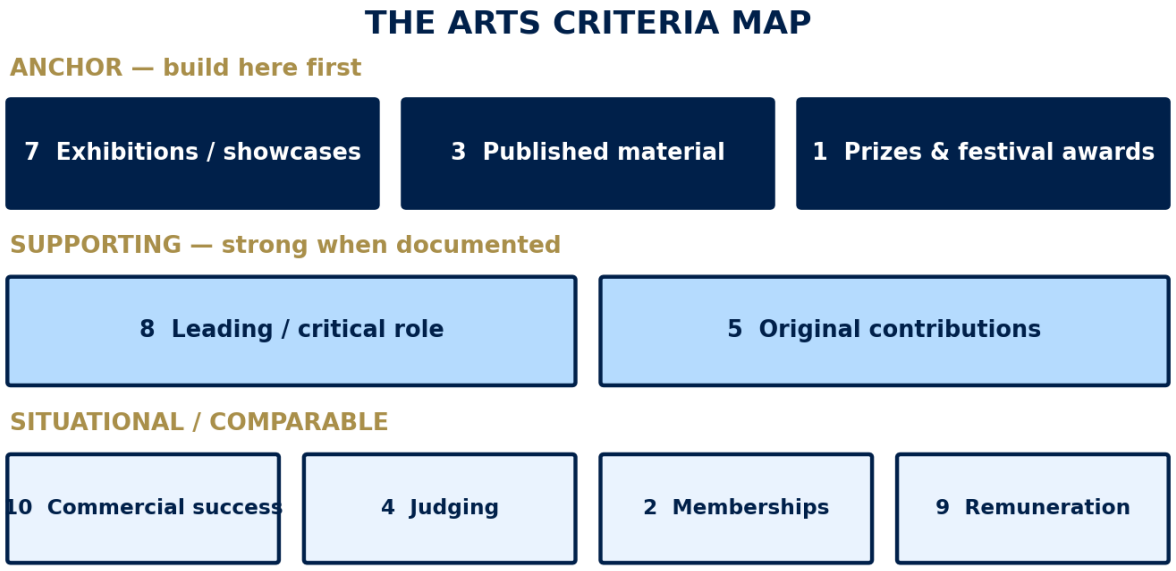


Figure 3.1 — The Arts Criteria Map. Anchor first, support second, situational last.

The three anchors

- **Criterion 7 — artistic exhibitions and showcases.** The arts-native criterion. Since October 2024 USCIS reads "artistic" strictly, which cuts both ways: it excludes trade shows, and it hands genuine artists a criterion no other field can claim. Chapter 5.
- **Criterion 3 — published material about you.** Reviews, profiles, features. The most common arts criterion — and the most commonly under-documented, because artists file the clipping and forget the outlet's credentials. Chapter 6.

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- **Criterion 1 — prizes and awards.** Festival jury prizes, national competitions, juried honors. "Lesser" recognized awards qualify by the regulation's own wording. Chapter 6.

The two supports

- **Criterion 8 — leading or critical role.** Principal dancer, first chair, creative director, lead animator, curator of a major program. Requires proving the company's or institution's distinguished reputation. Chapter 7.
- **Criterion 5 — original contributions of major significance.** The hardest and most valuable criterion in the arts: proving that other artists adopted something you originated. Chapter 7.

The situationals

- **Criterion 10 — commercial success in the performing arts.** Performing arts only, and strictly quantitative. Powerful when you have certified numbers; damaging when you file streaming counts without context. Chapter 8.
- **Criterion 4 — judging.** Festival juries, grant panels, conservatory admissions, competition adjudication. Buildable in 90 days.
- **Criterion 2 — memberships.** National academies, peer-elected societies, motion-picture and recording academies where the branch admits on judged achievement.
- **Criterion 9 — remuneration.** Per-project fees, advances, and royalties against published industry distributions.
- **Criterion 6 — scholarly articles.** Rarely direct for working artists — a classic comparable-evidence candidate, and the primary route for bloggers and critics (Chapter 8).

> **Strategy note — the 4–6 rule**
>
> Three criteria is the legal floor, not the target. Approved arts petitions typically evidence four to six, with at least two anchors carrying real weight. A petition built on three thin criteria is a petition built for an RFE.

Your first pass

Criterion	✓ Have it	⚠️ Partial	✗ No
7 — Exhibitions / showcases			
3 — Published material about me			
1 — Prizes & awards			

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Criterion	✓ Have it	⚠️ Partial	✗ No
8 — Leading / critical role			
5 — Original contributions			
10 — Commercial success (performing arts)			
4 — Judging			
2 — Memberships			
9 — Remuneration			

The bottom line

Anchor on 7, 3, and 1. Support with 8 and 5. Everything else is upside — or, for digital creators, a bridge.

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CHAPTER

04

Defining Your Artistic Field

And the hybrid-artist trap.

"Field of endeavor" is the denominator of your case. In the arts it carries a second job: it tells the officer **which peer group** to compare you against, in a domain where no rankings exist.

The formula

The AiVass field formula

[Medium or discipline] + [genre, subject, or method] + [context or market]

Too broad	Defensible	Too narrow
Art	Contemporary figurative painting in the post-digital tradition	Oil portraiture of Baltic fishermen
Film	Documentary cinematography for feature-length social-issue films	Handheld cinematography for Nordic climate documentaries
Music	Contemporary classical composition for chamber ensemble	Microtonal string quartets in 19-tone equal temperament
Design	Editorial and typographic design for cultural institutions	Poster design for one biennale
Writing	Long-form narrative nonfiction on migration and labor	Blog essays about one industry

The hybrid-artist trap

Creative careers rarely stay in one lane. A director who also shoots. A designer who also codes. A musician who also produces. The temptation is to claim all of it — and the effect is to dilute every criterion, because your evidence scatters across two peer groups.

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1. Choose the discipline where your acclaim is deepest — where the prizes, reviews, and exhibitions cluster.
2. Name the second practice as a dimension of the first, not a parallel field: “a director whose cinematographic method is itself the subject of critical attention.”
3. Verify Prong 2: the field you claim must be the field you intend to continue in the United States.
4. Stress-test: if an officer narrowed or broadened the definition by one notch, does the evidence still fit? Document a fallback.

Defining your peer group out loud

Officers cannot picture the top of a field they do not practice. Do it for them. In the final-merits section, name the tier: “the small percentage at the top of documentary cinematography — those whose work is selected by Sundance, Berlinale, and IDFA, reviewed in **[outlet]** and **[outlet]**, and taught in graduate film curricula.” Then place yourself in it, with exhibits.

The intent connection

Prong 2 requires intent to continue in the **area of your extraordinary ability**. No job offer is required. Evidence of intent for artists: signed commissions, exhibition commitments, festival selections for upcoming work, gallery representation agreements, teaching or residency invitations, a personal statement describing your U.S. practice, and — for creators running a business — a business plan.

> **The bottom line**
>
> Write your field in one sentence. Name the top few percent of it by title and venue. If you cannot name them, neither can the officer — and you cannot be counted among them.

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CHAPTER

05

Criterion 7 Masterclass

Exhibitions and showcases — the arts-native anchor.

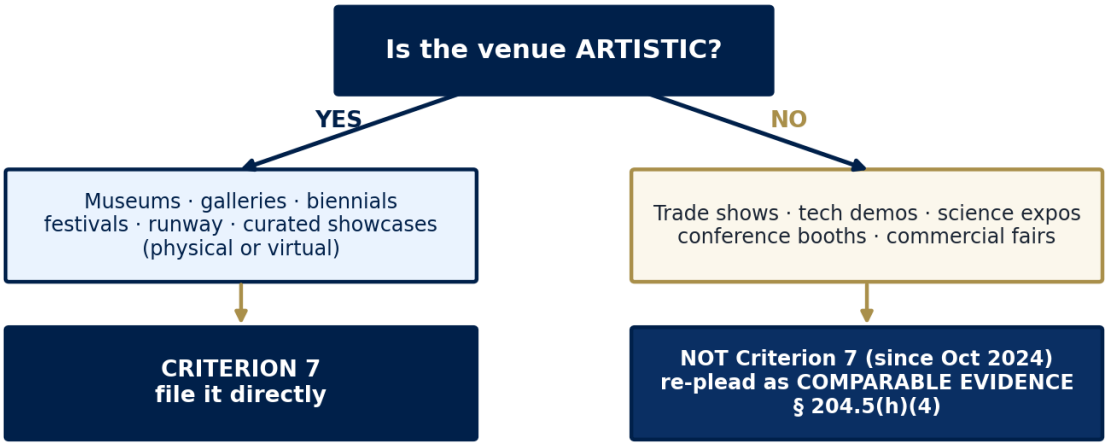
> **In the regulation — 8 C.F.R. § 204.5(h)(3)(vii)**
>
> *"Evidence of the display of the alien's work in the field at artistic exhibitions or showcases."*

Two elements. First: the displayed work must be **your own work product**. Second: the venue — physical **or virtual** — must be **artistic**.

The October 2024 line

USCIS acknowledged that the dictionary meaning of "exhibition" includes non-artistic showings — and then held that the regulation's word **"artistic"** controls. Trade shows, tech demos, science expos, and conference booths are **not** Criterion 7 evidence. They can only enter through a properly supported comparable-evidence claim under § 204.5(h)(4).

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Then, at Step 2, the venue's prestige is weighed. Any artistic venue satisfies Step 1.

Screen every exhibit item BEFORE filing — do not wait for the RFE to reframe.

Figure 5.1 — The venue test, post-October 2024. Screen every item before filing.

What counts

- Solo and group exhibitions at recognized galleries and museums.
- Juried biennials, triennials, and curated survey shows.
- Film festival official selections — screenings are showcases; document the selection process.
- Runway shows at recognized fashion weeks; curated design showcases.
- Commissioned public art, with unveiling documentation and commissioning-body records.
- Genuinely curated virtual exhibitions and online biennials — curation is the test, not the medium.

What does not

- Café, restaurant, hotel, or co-working "exhibits."
- Self-organized shows and pay-to-show galleries.
- Group shows where nothing documents that your work was included.
- A personal website or portfolio described as a "virtual exhibition" with no curatorial selection behind it.
- A booth, demo, or product showcase at a commercial fair — post-2024, an automatic loser under this criterion.

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The exhibition dossier

Officers do not know your venues. Build one page per exhibition. This is the single highest-return document in an arts petition.

Element	What to file
Your inclusion	Catalog page, program, wall text, installation photo, press mention naming you
Selection process	Open call statistics, jury names and credentials, curatorial statement, acceptance rate
Venue standing	Founding date, attendance figures, collection or alumni prominence, independent press about the venue
Reach	Visitor numbers, media coverage of the exhibition, catalogue distribution, tour cities
Your role	Solo vs. group; featured vs. included; commissioned vs. submitted

Strategy note — Step 1 versus Step 2

The Manual's own footnote: display at an artistic exhibition, regardless of caliber, satisfies Step 1. Prestige is weighed at Step 2. So do not pad the criterion with weak venues to "meet" it — one museum and two juried biennials beat nine café shows, and the nine will make your strongest venue look ordinary.

Criterion 7 self-check

- ☐ Every venue is artistic in nature under the post-2024 rule.
- ☐ My authorship of every displayed work is documented.
- ☐ A catalog, program, or independent press item names me for each exhibition.
- ☐ I have a venue-standing dossier for my three strongest exhibitions.
- ☐ Juried or curated selection is proven, with jury names and selectivity where available.
- ☐ Any non-artistic showing is re-pled as comparable evidence in the initial filing — not after the RFE.
- ☐ My exhibitions span multiple years and, ideally, multiple countries.

RFE radar

The predictable challenge since October 2024 is "the venue has not been shown to be an artistic exhibition or showcase." The second is "the record does not establish the beneficiary's work was displayed." Both are documentation problems. Fix them before you file.

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CHAPTER
06

Press & Prizes

Criterion 3 and Criterion 1 — the reputation criteria.

Criterion 3 — published material about you

> **In the regulation — 8 C.F.R. § 204.5(h)(3)(iii)**
>
> *"Published material about the alien in professional or major trade publications or other major media, relating to the alien's work in the field … Such evidence shall include the title, date, and author of the material, and any necessary translation."*

You need not be the sole subject. A broader article qualifies where it contains a **substantial discussion of your work** and names you in connection with it — and coverage of a collective, ensemble, or production counts where your significant role is documented. The outlet must be professional, major trade, or major media, judged by **intended audience** and **relative circulation, readership, or viewership**. Transcripts of major broadcast, radio, and podcast coverage qualify.

THE EXCLUSION THAT ENDS PETITIONS

Marketing content is excluded — including material that looks editorial but was **paid for** by you, your gallery, your label, or your publicist. This is not merely a weak exhibit. An officer who discovers a paid placement re-reads your entire file with suspicion. Ask your representatives directly, in writing, and document the answer.

COUNTS VERSUS DOES NOT

Counts	Does not count
A named critic's review of your exhibition, film, album, or performance	A listing, calendar entry, or "what's on" blurb
A profile discussing your method, subject, or influence	A press release, or a wire syndication of one
A festival daily or trade review analyzing your work	A one-line quote in an article about someone else

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Counts	Does not count
A broadcast or ranked-podcast segment, filed as transcript with audience data	Your own blog, newsletter, or social posts
A monograph, catalogue essay, or book chapter about your practice	Any paid feature, sponsored post, or advertorial

THE OUTLET COVER SHEET

Attach one page to every clipping: what the piece says about your work (highlighted), the author's credentials, the outlet's intended audience, and its circulation, readership, or ranking. Officers do not know which arts monthly leads your discipline. Prove it.

Criterion 1 — prizes and awards

> **In the regulation — 8 C.F.R. § 204.5(h)(3)(i)**
>
> *"Documentation of the alien's receipt of lesser nationally or internationally recognized prizes or awards for excellence in the field of endeavor."*

Two questions. Did **you** receive it — named in the announcement, on the stage, handed the certificate? (Since October 2024, **team awards qualify** where you are an actual recipient — critical for film crews and ensembles.) And is the award nationally or internationally recognized **for excellence in the field**? Nobel-level prestige is not required. Documented recognition is.

THE AWARD DOSSIER

- Who grants it, since when, and who sits on the jury — with the jurors' credentials.
- Selection statistics: entries received, works shortlisted, prizes given.
- Independent media coverage of the award itself, not just your win.
- Past recipients whose prominence establishes the prize's standing.
- Certified translation for any foreign-language documentation.

NOMINATIONS AND SHORTLISTS

A nomination is not receipt of an award. It can still be powerful — as evidence at **Step 2**, and sometimes under Criterion 3 (the announcement is published material about you) or as part of a comparable-evidence argument. Present it honestly for what it is: recognition by an expert body, short of the prize.

> **RFE radar**

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The number-one RFE under Criterion 1 attacks the award's recognition, not your receipt of it. Never file a certificate alone. And never file a prize you or your representative paid to enter or be listed in — pay-to-play recognition is visible, and it is contagious across your exhibits.

The bottom line

Press and prizes are how the world says you matter. Your job is to prove that the world doing the saying is the world that counts.

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CHAPTER

07

Roles & Influence

Criterion 8 and Criterion 5 — standing and significance.

Criterion 8 — leading or critical role

> **In the regulation — 8 C.F.R. § 204.5(h)(3)(viii)**
>
> *"Evidence that the alien has performed in a leading or critical role for organizations or establishments that have a distinguished reputation."*

Two elements: a **leading OR critical** role — for an organization **or a division or department of one** — and that entity's **distinguished reputation** ("marked by eminence, distinction, or excellence"). It is the **performance, not the title**, that decides "critical."

WHAT THIS LOOKS LIKE IN THE ARTS

- Principal dancer, first chair, concertmaster, or lead in a renowned company.
- Creative director, art director, or head of department at an acclaimed studio, label, or agency.
- Director, cinematographer, production designer, or editor whose contribution shaped an acclaimed production.
- Curator of a major museum program, festival programmer, or artistic director.
- A critical specialist — a colorist, lead animator, sound designer — whose work the production could not have achieved otherwise.

PROVING THE ENTITY'S REPUTATION

- Founding date, prizes won, collections held, artists represented, alumni prominence.
- Audience or attendance data; distribution reach; box-office or ticketing scale.
- Independent press about the organization itself.
- Rankings, accreditation, or peer standing in the discipline.

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Where the parent institution is unremarkable but your department is not — or vice versa — use the **division pathway** and prove the reputation of the unit you actually served.

EMPLOYER LETTERS

The regulation requires experience evidence to be **letters from employers** (8 C.F.R. § 204.5(g)(1)). For arts cases, these come from artistic directors, producers, curators, and label heads. Each should establish the writer's standing, the entity's reputation with numbers, your exact role and dates, and a specific outcome tied to you — a production that would not have taken its acclaimed form but for your work.

Criterion 5 — original contributions of major significance

> **In the regulation — 8 C.F.R. § 204.5(h)(3)(v)**
>
> *"Evidence of the alien's original scientific, scholarly, artistic, athletic, or business-related contributions of major significance in the field."*

The hardest criterion in the arts — and the most powerful, because it is the one that says you **changed how others work**. Two elements: the contribution is **original**, and it is of **major significance to the field** — not to one production, one gallery, or one client.

THE INFLUENCE MAP — proving major significance in a subjective field



"Critics in two national arts monthlies credit Ms. Rea with originating the wet-plate/AI hybrid method now taught at three conservatories and used by 40+ exhibiting artists (Exhibits 5.1–5.6)."

Figure 7.1 — The Influence Map. Build one per contribution.

WHAT QUALIFIES AS AN ARTISTIC CONTRIBUTION

- A technique or process other artists demonstrably adopted — documented by critics, curricula, or the artists themselves.

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- A stylistic innovation that critics identify as originating with you and name in discussing others' work.
- A production method that changed industry practice — a rig, a workflow, a restoration or fabrication technique.
- A genre-defining work whose influence is traced in scholarship, syllabi, or documented imitation.
- A tool, software, or open resource created by you and used across the discipline — file adoption metrics.

WHAT FAILS

- Skill, however extraordinary, without evidence that others changed their practice because of it.
- Impact confined to a single studio, gallery, or client.
- Letters full of admiration and empty of documents — the Manual says letters must be corroborated.
- "Influential" asserted, never evidenced.

Strategy note — how to evidence influence

Ask three questions and answer each with a document. Who names me as the originator? (Critical essays, catalogue texts, scholarship.) Who adopted it? (Named artists, studios, institutions — and, ideally, their own statements.) How far did it travel? (Curricula, editions, exhibitions, adopting practitioners — counted.)

RFE radar

Officers routinely concede originality and reject major significance. Build a Significance Map per contribution: artifact → adopters → documentation → number. Never let expert letters carry this criterion alone.

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CHAPTER

08

Digital Creators, Bloggers & Commercial Success

Criterion 10, Criterion 6, and the bridge for creators the regulation never imagined.

Criterion 10 — commercial success in the performing arts

> **In the regulation — 8 C.F.R. § 204.5(h)(3)(x)**
>
> *"Evidence of commercial successes in the performing arts, as shown by box office receipts or record, cassette, compact disk, or video sales."*

Performing arts only, and strictly quantitative. The Manual is explicit: merely having recorded albums or performed in productions is **"insufficient, in and of itself."** The evidence must show **volume** — sales and receipts reflecting commercial success **relative to others in similar pursuits**.

WHAT WINS

- Certified box-office data from recognized industry trackers.
- Audited sales and royalty statements; gold or platinum certifications (third-party and threshold-based — the cleanest evidence available).
- Chart positions filed with the chart's methodology.
- Headline-tour grosses from recognized industry reports.
- Your causal connection to the success: billing, headliner status, writing credits, featured performer status.

WHAT LOSES

- Raw streaming or view counts with no revenue and no comparative context.
- Self-reported sales figures.

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- Follower counts framed as commercial success — they are not sales, and officers know it.
- An ensemble production's gross claimed without tying your role to the draw.

> **Strategy note**
>
> Criterion 10 is rarely filed and usually mis-filed. If you cannot produce audited numbers with a rank or benchmark beside them, skip it. Visual artists, designers, and writers should not attempt it at all — anchor on Criteria 1, 3, 5, 7, and 8, and use Criterion 9 for sales income.

Bloggers, critics, essayists and digital creators

The ten criteria were written before the internet reorganized creative careers. If your practice is writing, criticism, video essays, photography distributed digitally, or a publication you built yourself, two things are true. First: **you are not excluded** — the arts are a statutory field and the regulation names no medium. Second: several criteria will not **readily apply** to your occupation, which is precisely the trigger for comparable evidence under § 204.5(h)(4).

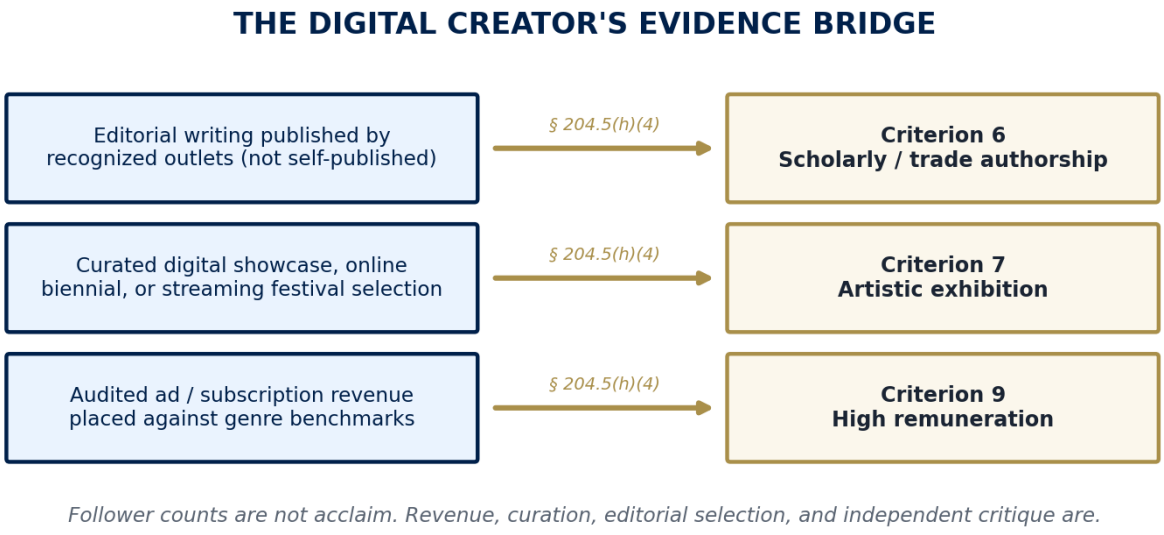


Figure 8.1 — The digital creator's bridge. Argue it in the initial filing, not after the RFE.

THE HARD TRUTH ABOUT SELF-PUBLISHING

Content you publish yourself is **not** Criterion 3 (published material about you) and it is **not** Criterion 6 (authorship in professional or major trade publications) — Criterion 6 requires a venue with an editorial or peer-review process and a readership of learned persons in the field. Your own blog is neither. What changes the analysis:

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- **Editorial placement.** Essays, criticism, or reportage that recognized outlets commissioned and edited. This is Criterion 6 territory when written for the field's learned readership; it is genuine authorship regardless of medium.
- **Coverage of you.** When major media or professional publications write about your work, that is Criterion 3 — the strongest evidence a digital creator can hold.
- **Curated selection.** Selection into a curated online exhibition, streaming festival, or juried digital showcase is Criterion 7 evidence; curation is the test, not the wall.
- **Prizes.** Digital and online journalism, photography, and video prizes with named juries and published criteria are Criterion 1 evidence like any other.
- **Judging.** Serving on juries for digital-media awards, grant panels, or fellowship committees — Criterion 4, buildable in 90 days.
- **Revenue.** Audited advertising, subscription, licensing, or syndication income, benchmarked against genre norms, is Criterion 9.

THE COMPARABLE-EVIDENCE ARGUMENT, IN FOUR MOVES

1. Name the criterion — "Criterion 7, artistic exhibitions."
2. Prove why it does not readily apply to your occupation, with support: digital-first practices have no gallery circuit; the field's recognized showcases are curated online platforms and streaming festivals.
3. Present the substitute: the curated platform, its curators, its selectivity, its audience.
4. Argue equivalence of significance, not of form — selection by these curators carries the same field-recognition weight as selection by a gallery's.

RFE radar — the follower-count trap

Audience size is not acclaim, and USCIS treats it accordingly. A creator with 2 million followers and no editorial coverage, no juried selection, and no prizes has a distribution channel, not a record of sustained national or international acclaim. Convert reach into recognition: get commissioned, get reviewed, get juried, get paid — and document all four.

The bottom line

The medium is never the barrier. The absence of independent, expert recognition is. Build the recognition, then bridge the criteria.

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CHAPTER
09

Final Merits & the Evidence Sprint

Making a subjective record objective — in 180 days.

Winning Step 2

You meet five criteria. Nothing is decided. Step 2 weighs the **totality** and asks whether you are among the small percentage at the very top, with sustained national or international acclaim. Arts petitions win Step 2 by importing objectivity where the field offers none.

THE FIVE OBJECTIVITY LEVERS

- **Selectivity.** Acceptance rates, jury composition, entries versus prizes, curatorial gatekeeping.
- **Institutional standing.** The venue, the company, the outlet — ranked, aged, collected, attended, reviewed.
- **Reach.** Attendance, circulation, viewership, tour cities, editions, distribution.
- **Money.** Certified sales, advances, fees, grosses — placed against field distributions.
- **Influence.** Adoption of your work by others, documented by critics, curricula, and practitioners.

THE FINAL-MERITS ARGUMENT, IN SEVEN MOVES

1. Restate the standard — the two-step framework and the "small percentage at the very top" definition.
2. Define the peer group concretely — the venues, prizes, and critics that mark the top of your discipline.
3. Synthesize, do not repeat — one arc: recognition → influence → standing.
4. Place yourself with comparatives — selectivity ratios, venue tiers, adoption counts, sales percentiles.
5. Prove the acclaim is national or international, not local or institutional.

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6. Show the trajectory is alive — your last 24 months, named.
7. Land the U.S. benefit — the cultural, educational, and economic contribution of your continued practice here.

Letters — curators, critics, and the independence rule

The Manual says witness statements "should not form the cornerstone" of the claim and that acclaim should extend **beyond your personal and professional acquaintances**. For arts petitions:

- Six to eight letters, majority from independent experts — critics, curators, festival directors, scholars — with no employment or representation relationship to you.
- Each writer's own standing established first: their credentials, their platform, their basis of knowledge of your work.
- Each letter assigned two to four specific criteria, with the corroborating documents already in the file.
- A comparative sentence in each: where you sit against the top tier of the discipline, in the writer's professional judgment.
- Brief your writers with facts. Never draft the letter. Template language across letters is detectable and discounted.

The 30 / 90 / 180-day sprint

DAYS 0–30 — INVENTORY AND MAP

- Convert your CV into a criteria-tagged evidence list: every show, review, prize, role, sale, and adoption.
- Collect what you control: catalogs, programs, contracts, royalty statements, tax records, jury invitations.
- Write your field of endeavor in one sentence. Stress-test it (Chapter 4).
- Score yourself with the Chapter 12 matrix; identify your two anchors and two weakest criteria.

DAYS 31–90 — BUILD AND REQUEST

- Submit to two juried exhibitions or festivals whose selectivity you can document.
- Pitch three critics or arts editors a specific, non-promotional angle on your method — not your next show's opening date.

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- Volunteer for a jury, grant panel, or admissions committee. Keep the invitation and the completion proof.
- Order certified translations for foreign-language reviews, catalogs, and certificates. This always takes longer than expected.
- Send letter-writer briefing memos with documents attached.

DAYS 91–180 — PROVE AND ASSEMBLE

- Build the exhibition dossiers (Chapter 5) and outlet cover sheets (Chapter 6).
- Build the Influence Map for each original contribution (Chapter 7).
- Assemble commercial evidence with comparative benchmarks (Chapter 8).
- Collect 6–8 letters; assemble exhibits numbered by criterion; then professional review, then file.

Strategy note — the patience rule

The most expensive mistake in EB-1A is filing three months early. If you sit at two solid criteria and three maybes, a 90-day build converts maybes into exhibits. Denials cost more than patience — in money, in time, and in the record you carry into your next filing.

The bottom line

Selectivity, standing, reach, money, influence. Five levers turn a subjective practice into a verifiable record. Pull all five.

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CHAPTER

10

Filing, Fees & Timing

Mechanics, money, and the one variable you do not control.



Timelines vary by case, service center, and country of chargeability — always check the current Visa Bulletin.

Figure 10.1 — The EB-1A journey, end to end.

The filing

EB-1A runs on **Form I-140**. A standalone I-140 can be filed online; if you file premium processing or other forms together, file by mail. Approval sets your **priority date** — your place in line, which controls everything after.

Costs

> **Snapshot — fees as verified July 2026**
>
> **Form I-140 filing fee:** $715
>
> **Asylum Program Fee (paid with the I-140):** $600 standard · $300 for small employers (25 or fewer full-time-equivalent employees — the bracket most individual self-petitioners fall into) · $0 for nonprofits. Paying the wrong tier causes rejection at intake.

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Premium processing (Form I-907, optional): 15-business-day adjudication window; a fee adjustment applies to filings postmarked on or after March 1, 2026 — currently $2,965 for the I-140.

Payment method: USCIS has moved away from paper checks and money orders for mailed filings — pay by card (G-1450) or ACH (G-1650) unless exempt.

Fees change. Confirm at uscis.gov/feecalculator and on the current Form G-1055 before you send anything.

Timing

- **Preparation:** 2–6 months of evidence building and drafting. The part you control, and the part that decides the outcome.
- **Adjudication:** 15 business days with premium processing; otherwise months, varying by service center. Premium buys speed, not favor — the standard is identical.
- **After approval:** Form I-485 (adjustment of status, if you are in the U.S. and your date is current) or consular processing abroad.

The Visa Bulletin

Snapshot — July 2026 Visa Bulletin (EB-1)

Worldwide, Mexico, Philippines: Current — no wait for a visa number.

China: Final Action Date of June 1, 2023 (advanced two months).

India: Final Action Date of October 15, 2022 — retrogressed two months; the Department of State has warned of possible further retrogression before the fiscal year ends September 30, 2026.

Context: EB-2 India is unavailable for the remainder of FY2026 — a principal reason Indian-born artists and creative professionals are moving toward EB-1A and filing early to secure a priority date.

A snapshot, not a forecast. Check travel.state.gov monthly — the bulletin is the most volatile fact in this guide.

Working with an attorney

This guide is designed to make you a better client, not to replace counsel. AiVass is not a law firm. What changes when you arrive prepared:

- You bring a criteria matrix, not a portfolio — the engagement starts at strategy, not triage.
- Your evidence is already quantified and sourced, so billable hours go into argument, not chasing documents.

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- You can evaluate a quote intelligently: a firm that cannot explain its Step-2 theory of your case is not the firm.

The bottom line

You control preparation quality and filing date. You do not control the bulletin. Build well, file when ready, verify fees and policy the week you send.

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CHAPTER
11

Expert & B2B Annex

For attorneys, paralegals, legal-ops teams, and in-house mobility.

This chapter is operational. It assumes professional familiarity with the standard and focuses on repeatable workflow for arts-profile EB-1A matters: intake, assessment, gap remediation, exhibit architecture, and pre-filing QC.

Intake questionnaire — arts profile

Section	What to capture	Why it matters
Field definition	One-sentence artistic field; named peer group (venues, prizes, critics); fallback definition	Denominator of the entire case (Ch. 4)
Exhibitions	Every show: venue, dates, solo/group, curator, jury, catalog, selectivity, press	Criterion 7 — screen each venue for "artistic" (post-Oct 2024)
Press	Full articles: title, author, date; outlet audience & circulation; paid-placement screen	Criterion 3 — the paid-placement screen is mandatory
Prizes	Award dossiers: grantor, jury, criteria, entries vs. winners, media on the award itself	Criterion 1 — team awards now qualify with named receipt
Roles	Company/studio/label standing; your role, dates, scope; but-for outcome	Criterion 8, both prongs; § 204.5(g)(1) employer letters
Influence	Originated technique/style; named adopters; critical documentation; counts	Criterion 5 — highest RFE exposure
Commercial	Certified sales, box office, chart methodology, royalty statements, benchmarks	Criterion 10 (performing arts only) or Criterion 9
Judging	Invitations + completion proof; venue scale and selectivity	Criterion 4
Memberships	Grade held; bylaws; expert-judged admission; election statistics	Criterion 2

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Section	What to capture	Why it matters
Digital practice	Editorial commissions; curated online selection; audited revenue	Comparable evidence § 204.5(h)(4) — argue in the initial filing
Translations	Certified translations for all foreign catalogs, reviews, certificates	Regulatory requirement; long lead time
Recency	All recognition within the last 24 months	Sustained acclaim at Step 2

Criteria assessment matrix

Score each criterion twice — Step 1 (does the evidence objectively meet the regulatory terms?) and Step 2 (does it carry weight toward top-of-field?). A criterion can pass Step 1 and contribute almost nothing at Step 2.

#	Criterion	Step 1: met?	Step 2: weight	Gap / remediation	Owner	Due
7	Exhibitions / showcases					
3	Published material					
1	Prizes & awards					
8	Leading / critical role					
5	Original contributions					
10	Commercial success					
4	Judging					
2	Memberships					
9	Remuneration					

Exhibit index architecture

- Number by criterion: 3.1, 3.2 … 5.1, 5.2 … so any claim is verifiable in seconds.
- One cover sheet per exhibit: what it is, which criterion element it satisfies, what it proves.
- Certified translations for every foreign-language catalog, review, and certificate; full articles, never clippings.

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- Web evidence captured with URL and access date visible in the capture.
- Order criterion sections by evidentiary strength — not regulatory order.

Pre-filing QC checklist

☐ Field of endeavor stated identically in the cover letter, every criterion section, and every letter.

☐ Criterion 7: every venue screened as artistic under the post-October-2024 rule; non-artistic showings re-pled as comparable evidence.

☐ Criterion 7: exhibition dossier (inclusion, selection, venue standing, reach) for each major show.

☐ Criterion 3: paid-placement screen documented in writing; outlet cover sheet attached per item.

☐ Criterion 1: award dossier per prize — grantor, jury, selectivity, independent coverage of the award.

☐ Criterion 5: Influence Map per contribution, with named adopters and counts.

☐ Criterion 8: entity reputation dossier (parent vs. division) + but-for outcome.

☐ Criterion 10: only filed with certified numbers and a comparative benchmark.

☐ Certified translations complete for all foreign-language exhibits.

☐ Letters: independent-majority, distinct voices, each claim corroborated by a document.

☐ Recency: documented recognition within the last 24 months.

☐ Fees verified on the current G-1055; Asylum Program Fee tier correct.

☐ Policy Manual updates page checked within 30 days of filing.

RFE risk register — arts profiles

Criterion 7: “venue not shown to be an artistic exhibition” (the post-2024 denial) · “display of beneficiary’s work not established.” Remedy: venue dossier + catalog naming the artist.

Criterion 3: “material not about the beneficiary” · “outlet not shown to be major media.” Remedy: cover sheets with audience and circulation data.

Criterion 1: “award not shown to be nationally or internationally recognized.” Remedy: award dossier, jury credentials, selectivity ratio.

Criterion 5: “originality conceded; major significance not established.” Remedy: Influence Map — named adopters, critical documentation, counts.

Criterion 10: “sales volume and comparative context not established.” Remedy: certified data plus benchmark, or withdraw the criterion.

Final merits: “meets criteria but record does not establish top of field.” Remedy: peer-group definition by venue and prize tier, comparatives, recency, independent critic and curator letters.

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CHAPTER
12

Myths, Red Flags & Your Self-Assessment

Score the record you have. Then build the record you need.

Eight myths that keep qualified artists from filing

The myth	The reality
“EB-1A is only for scientists.”	The arts are one of the five statutory fields. The regulation even contains two arts-only criteria (7 and 10).
“My O-1B approval means EB-1A approval.”	A prior O-1 is “a relevant consideration … not determinative.” The immigrant standard is higher.
“I need gallery or label sponsorship.”	No job offer is required. You self-petition. You must intend to continue in your field.
“Any group show counts as an exhibition.”	The venue must be artistic and, at Step 2, its prestige is weighed. Nine café shows weaken your museum show.
“My follower count is acclaim.”	Reach is distribution. Acclaim is independent, expert recognition — juries, critics, curators, prizes.
“Streams and views equal commercial success.”	Criterion 10 requires sales or receipts with comparative context — and applies to performing arts only.
“Art can’t be quantified.”	Selectivity, standing, reach, money, and influence are all countable. That is the whole method of this guide.
“Trade shows are exhibitions.”	Since October 2024, expressly not. Route them through comparable evidence, or leave them out.

Ten red flags to fix before you file

- ☐ Any review, feature, prize, or listing that you, your gallery, label, or publicist paid for.

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- ☐ Self-organized exhibitions or pay-to-show galleries presented as juried venues.
- ☐ A Criterion 7 claim built on a trade show, conference booth, or product demo.
- ☐ Follower counts, view counts, or streams offered as evidence of acclaim.
- ☐ A portfolio website described as a "virtual exhibition" with no curator behind it.
- ☐ Reviews that are really listings — no critic, no analysis, no author.
- ☐ Recommendation letters from friends, representatives, and employers only.
- ☐ Influence asserted ("widely imitated") with no named adopter and no document.
- ☐ Foreign-language catalogs and reviews filed without certified translations.
- ☐ No documented recognition within the last 24 months.

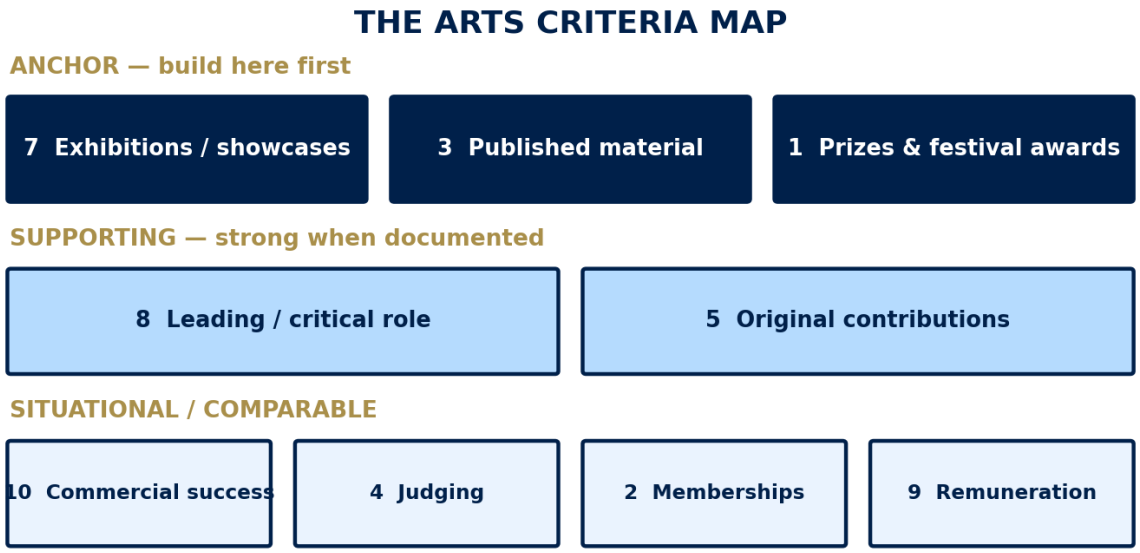
Case-positioning questions

Answer these in writing before you draft anything. If an answer has no artifact behind it, that is your next 90 days.

1. Which of your venues were genuinely juried or curated — and can you prove the selection process?
2. Which critics of documented stature have written about your work, in outlets whose readership you can evidence?
3. What did you originate that other artists adopted — and who has said so in print?
4. Which prizes did you receive, and what is the entries-to-winners ratio?
5. Which distinguished company, studio, label, or institution relied on you — and for what outcome?
6. If performing arts: what are your certified sales or receipts, and how do they compare to peers?
7. What has recognized you in the last 24 months?
8. If an officer asked you to name the top 3% of your discipline, could you? Are you among them, and why?

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The self-assessment scorecard



Criterion 10 is performing arts only. Criterion 6 rarely applies — route through comparable evidence.

Figure 12.1 — Return to the map. Score honestly: if the document is not in your folder, it does not exist.

Component	Points	Your score
Three or more criteria fully evidenced (documents in hand)	30	
Venue, outlet, and prize prestige documented by third parties	15	
Influence on other artists named, documented, and counted	15	
Six to eight letter writers identified, independent-majority	10	
Documented recognition within the last 24 months	10	
Artistic field defensible and stress-tested	10	
Commercial or remuneration evidence verified against benchmarks	10	
Total	100	

Score	Where you stand	What to do next
75–100	Strong. Anchors evidenced, final-merits story intact.	Assemble exhibits and seek professional review. Curate the file as you would an exhibition.

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Score	Where you stand	What to do next
50–74	Buildable. The foundation is real; the proof has gaps.	Run the 90/180-day sprint (Chapter 9) against your weakest criteria. Do not file yet.
30–49	Early. Genuine practice, insufficient external acclaim.	Spend 12–24 months building acclaim deliberately: juried shows, critical coverage, prizes, jury service. Evaluate EB-2 NIW in parallel with counsel.
Below 30	Not yet.	This is information, not a verdict. Build the record, or discuss other categories with an attorney.

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Where to Go From Here

This field guide sits inside the AiVass EB-1A library. Each companion product goes deep on one stage of the build.

Product	Best for	What it does
EB-1A Master Guide	Everyone	The full legal framework and all ten criteria — the foundation of this series.
Eligibility Self-Assessment Workbook	Beginners	Extends Chapter 12 into a full scored diagnostic with decision paths.
Evidence Mapping Workbook	DIY applicants	Turns the criteria masterclasses into a working evidence-to-criteria system.
Field of Endeavor Definition Guide	Professionals	Drills Chapter 4's formula until your artistic field is defensible.
Recommendation Letter Toolkit	Applicants & lawyers	Curator and critic briefing memos, independence hierarchy, corroboration mapping.
Personal Statement Framework	Applicants	Structures intent, future U.S. work, and national benefit.
Petition Assembly Checklist	DIY applicants	Chapter 11's QC pass, exhibit by exhibit.
100 AI Prompts for EB-1A	Everyone	The prompt library for inventory, mapping, gap-scan, and quantification.
Law Firm Toolkit (B2B)	Immigration firms	Intake, criteria matrices, RFE risk register, team workflow at volume.

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Sources & Verification

Every legal statement in this guide traces to a primary authority below. All sources were accessed and verified on **July 8, 2026**. Practitioner commentary, where it informed context, is identified as secondary and non-authoritative.

Source	Publisher	Authority	What it governs here
USCIS Policy Manual, Vol. 6, Part F, Ch. 2 — Extraordinary Ability	USCIS	Primary — agency guidance	Eligibility, the ten criteria, comparable evidence, two-step analysis, final merits, letters, and the "artistic" exhibition rule.
8 C.F.R. § 204.5(h) and § 204.5(g)(1)	GPO / NARA	Primary — regulation	Definition of extraordinary ability, the ten criteria, comparable evidence, self-petition, employer-letter requirement.
INA § 203(b)(1)(A) · 8 U.S.C. § 1153(b)(1)(A)	U.S. Congress	Primary — statute	The three prongs: acclaim, continuing work, substantial benefit.
Employment-Based Immigration: First Preference EB-1 · uscis.gov	USCIS	Primary — agency	Self-petition confirmation; no PERM requirement.
Form I-140 page & instructions · Fee Schedule G-1055 · Fee Calculator	USCIS	Primary — agency	Filing mechanics, fees, Asylum Program Fee tiers, payment methods.
Policy Alerts, Sept. 12, 2023 and Oct. 2, 2024	USCIS	Primary — policy	Team awards; past memberships; scope of published material; the strict "artistic" reading of Criterion 7.
Kazarian v. USCIS, 596 F.3d 1115 (9th Cir. 2010)	9th Circuit	Primary — judicial	The two-step evidentiary analysis applied nationwide.
Visa Bulletin, July 2026	U.S. Dep't of State	Primary — agency	Priority dates and retrogression. Volatile: re-check monthly.
17 U.S.C. § 105 · Georgia v. Public.Resource.Org (2020)	Congress / SCOTUS	Primary	Public-domain status of U.S. government works and legal edicts.
Immigration law-firm alerts and practitioner commentary (2024–2026)	Various	Secondary — non-authoritative	Context and cross-confirmation only. Never the basis of a legal statement in this guide.

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Final reminder

This guide is educational. It is not legal advice, and AiVass LLC is not a law firm. Before filing, have a licensed U.S. immigration attorney review your petition, and verify every fee, date, and policy statement at uscis.gov. Guidance changes; your case deserves current law.

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